

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

10. JANELL PALMER V. RAFE PALMER

24FL1174

On January 23, 2026, Petitioner filed a Request for Order (RFO) seeking child support, spousal support, and dissolution of marriage orders. She did not file an Income and Expense Declaration as required. The RFO and Notice of Tentative Ruling were served on January 23rd, however she did not serve an Income and Expense Declaration or a blank FL-320.

On March 25th, Respondent filed his Responsive Declaration to Request for Order and his Income and Expense Declaration. Both were served on March 26th.

“For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration.” Cal. Rule Ct. 5.260(1); See *also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01.

Here, Petitioner is the moving party, however she has not filed a current Income and Expense Declaration. As such, the requests for spousal and child support are denied due to failure to file the proper documentation.

Regarding the request for bifurcation, a party may request bifurcation of the issue of marital status, however prior to doing so the party must ensure that “[a]ll pension plans that have not been divided by court order that require joinder ...” have been joined. Cal. Rule Ct. 5.390(d)(1). A party seeking bifurcation is to submit a completed FL-315. Cal. Rule Ct. 5.390(a).

Petitioner did file the requisite FL-315 however, it is unclear if there are any pension or retirement plans that require joinder. The parties are ordered to appear for the hearing on this issue.

TENTATIVE RULING #10: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING ON THE ISSUE OF BIFURCATION AND TERMINATION OF MARITAL STATUS.

THE REQUESTS FOR SPOUSAL AND CHILD SUPPORT ARE DENIED DUE TO THE FAILURE TO FILE THE PROPER DOCUMENTATION.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE

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TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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11. ALISHA RAINS V. AARON BOYD

25FL0175

On January 14, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. All required documents, with the exception of a blank FL-320, were served on January 16th.

The parties attended Child Custody Recommending Counseling (CCRC) on February 6, 2026, and were able to reach agreements on some issues. A report with the agreements and recommendations was prepared on March 20, 2026. It was mailed to the parties on March 25th.

Respondent filed and served a Responsive Declaration to Request for Order on March 25th.

Petitioner is requesting orders regarding the safe transportation of the children, supervision of the children at all times, the proper storage of medication, and communication between the parties in the event of an emergency. She also asks that the parents be ordered to obtain independent study when removing the children from school for 5 days, and that they notify one another when the children are reported sick to school. She asks that each parent be allowed to have reasonable video calls with the children during their non-custodial time and that neither parent may unreasonably deny, restrict, monitor, or terminate the calls. She further requests orders clarifying the court's prior orders regarding vacations with the children. She asks that the court enforce its prior orders that neither party make unilateral decisions regarding issues of legal custody. Finally, she asks that both parents be allowed to attend extracurricular activities, school events, performances, games, ceremonies and similar events regardless of which parent has custody at the time of the event.

Respondent argues that the majority of the issues raised by Petitioner have already been resolved or addressed by the court previously. He opposes the request regarding attendance at extracurricular activities, and he asks for sanctions in the amount of \$1,500 pursuant to Family Code § 271.

After reviewing the filings as outlined above, the court finds the agreements and recommendations contained in the March 20, 2026 CCRC report to be in the best interests of the minors. They are hereby adopted as the orders of the court. In addition to the aforementioned, the court is ordering the following: (1) All medications and EpiPens shall be stored safely and outside of the reach of the minors; (2) The parties may use their allotted vacation time with the children on their assigned holiday, provided that the